



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: Ismail v Vats, 2025 ONLTB 95804

Date: 2025-12-10 **File Number:**
LTB-L-094153-24-RV

In the matter of: 203, 76 SHUTER ST TORONTO
ON M5B1B4

Between: Noreen Ismail Landlord

And

Mehula Vats Former
Navneet Dhanjal Tenant

Review Order

Noreen Ismail (the 'Landlord') applied for an order requiring Mehula Vats and Navneet Dhanjal (the 'Former Tenant') to pay the Landlord's reasonable out-of-pocket costs that are the result of the Former Tenants' conduct or that of another occupant of the rental unit or someone the Former Tenant permitted in the residential complex. This conduct substantially interfered with the Landlord's reasonable enjoyment of the residential complex or another lawful right, privilege or interest.

Noreen Ismail (the 'Landlord') applied for an order requiring Mehula Vats and Navneet Dhanjal (the 'Former Tenant') to pay the Landlord's reasonable out-of-pocket costs that the Landlord incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Former Tenant, another occupant of the rental unit or someone the Former Tenant permitted in the residential complex.

This application was resolved by order LTB-L-094153-24 issued on November 12, 2025.

On December 9, 2025, the Landlord requested a review of the order.

A preliminary review of the review request was completed without a hearing. In determining this request, I reviewed the materials in the LTB's file.

Determinations:

1. This review request is made on the grounds of serious error and being not reasonably able to participate in the proceedings.
2. The hearing that gave rise to the order under review took place on November 3, 2025. The Landlord attended and gave evidence and submissions.
3. The order finds that there is insufficient evidence to conclude that water damage was caused by the Tenants. The Landlord submits that the Member did not consider certain evidence. However, none of the evidence referred to by the Landlord establishes that the Tenants misused the washing machine and so I am not satisfied that the Member failed to consider evidence that would have supported the Landlord's position about the water damage.
4. The Landlord submits that the Member improperly applied a "higher standard of proof" to the Landlord with respect to the evidence of the Tenants' alleged role in the water damage. The Member properly required the Landlord to prove her case on a balance of probabilities, as the Landlord is the applicant.
5. The Landlord submits that the Member's factual finding that he was not satisfied that the Tenants had interfered with repairs "contradicts objective evidence." In fact, there was no objective evidence that the Tenants had interfered with repairs.
6. The Landlord submits that the Member failed to draw an inference that the Tenants had caused the water damage. There was insufficient evidence given at the hearing from which to draw this inference and so I am not satisfied that it was an error to fail to draw this inference.
7. The Landlord submits that the Member treated the contractors' absence from the hearing as "no evidence." The Member did consider the invoices and other evidence in writing about the contractors' attendances at the unit. To the extent that the Member gave this evidence little weight, that was warranted because it was hearsay evidence. Hearsay evidence is evidence of a statement made outside of a hearing. The problem with hearsay evidence is the person who made the statement is not available at the hearing to be cross-examined on the statement. Hearsay evidence is generally not admissible in a court but is admissible in tribunals. Hearsay evidence will be given very little weight if it is not found to be both necessary and reliable. The Landlord did not establish that the hearsay evidence of the contractors was necessary. It was therefore not an error to give this evidence very little weight.
8. The Landlord submits that the Member failed to consider certain evidence regarding the roach infestation. At the hearing the parties agreed that there were roaches in the unit.

The Member found that the Landlord had not given sufficient evidence that the Tenants caused this problem. The evidence pointed out by the Landlord on review does not establish that the Tenants caused the problem. In particular, the Orkin reports say only that housekeeping was an issue with extermination. These reports do not say that the Tenants caused the problem. The Landlord also submits that it was an error not to consider the Home Hardware receipts for home pest control products. The order notes that these receipts are illegible, even with enlargement. I viewed the receipts filed by the Landlord prior to the hearing and I confirm that they are illegible even with enlargement. It is not sufficient for the Landlord to provide these receipts on review.

9. The Landlord disagrees with the Member's assessment that the Landlord's photographs showed only a gouge in one of the walls. A review is not an opportunity to relitigate a matter in the hopes of a more favourable outcome.
10. The Landlord submits that it was an error for the Member not to consider the part of the application that was not visible. This was not an error. The Landlord gave no evidence that the Tenants had seen the entire application. As noted in the order, the Landlord had a year to request an amendment to the application to include the missing information but did not do so until the date of the hearing. It would have been manifestly unfair to proceed on the issues not disclosed to the Tenants in advance and it was reasonable in these circumstances not to adjourn the hearing.
11. The Landlord submits that it was an error for the Member to refuse to consider evidence pertaining to settlement discussions, because the Tenants' communications about settlement did not indicate that they were privileged. Evidence of settlement discussions is automatically privileged and so it is not necessary to indicate "privileged" on the settlement communications. The Landlord further submits that the Member erred by failing to draw an inference that the Tenants caused damage from the Tenants' communication that the Landlord can keep the security deposit. There is no evidence that the Tenants admitted to causing damage. The Tenants could have foregone their right to the return of their security deposit for a number of reasons and so it was not an error for the Member to fail to draw this inference. I note that the Tenants were successful in a T1 application claiming the return of a security deposit so it appears the Tenants did not forgo the return of the security deposit in any event.
12. The Landlord submits that the Member erred by denying the Landlord's claim for out of pocket living expenses. Given the Member's finding that the only damage the Tenants had caused was the gouge in the wall, the denial of the Landlord's claim for living expenses was reasonable.
13. The Landlord submits that it was procedurally unfair for the Tenants' T1 claim was scheduled to be heard first. I am not satisfied that this was procedurally unfair. The issues in the L10 application and the T1 application do not overlap. I say this because, as stated

in order LTB-T-004587-25 issued on December 4, 2025, the Landlord was never entitled to require that the Tenants pay this deposit. Whether the Tenants caused damage is not relevant to the issue of the security deposit.

14. For the reasons above, on the basis of the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings or that the Landlord was not reasonably able to participate in the proceeding.

It is ordered that:

1. The request to review order LTB-L-094153-24 issued on November 12, 2025 is denied. The order is confirmed and remains unchanged.

December 10, 2025

Date Issued

Renée Lang

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.